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| CASE #      | CASE NAME                                        | HEARING NAME |
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| CVRI2602212 | GONZALEZ VS YODITES & ASSOCIATES MANAGEMENT, LLC | DEMURRER     |

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**Tentative Ruling:**

Moving party: Defendants Yodites & Associates Management, LLC, Dana Garcia, Matthew Bauer and Katie Ryker

Represented by: Best Best & Krieger LLP

Responding party: Plaintiff Leticia Gonzalez

Represented by: Employee Justice Legal Group, P.C.

Plaintiff Leticia Gonzalez, a Mexican woman who speaks primarily Spanish, was hired in June 2018 as caregiver staff at Defendant Yodites & Associates Management, LLC's Basic Occupational Training Center ("BOT") in San Jacinto. BOT is a facility which provides daycare services and occupational training for adults with special needs. Defendants Dana Garcia ("Garcia") (program director), Matthew Bauer ("Bauer") (Chief Operating Officer); and Katie Ryker ("Ryker") (HR manager) are alleged to be "owners, directors, officers and/or managing agents" of BOT. Plaintiff was diagnosed with lupus in 2019 and provided Defendants with a doctor's note informing it of said disability, and they failed to engage in the interactive process with Plaintiff and failing to consider disability. She alleges due to her national origin, race and/or ethnicity, and related inability to speak English, Defendant and its management would often assign Plaintiff work or tasks that were less desirable or that other employees preferred not to do. Plaintiff alleges she was intentionally discriminated and/or retaliated against on the basis of her disabilities and/or race, her requests for reasonable accommodations and/or her complaints of being discriminated against when she was unfairly disciplined and falsely accused of wrongdoing. In November 2025, Plaintiff began seeing a mental health therapist who diagnosed her with anxiety. She was terminated on December 12, 2025.

On April 10, 2026, Plaintiff filed her complaint alleging the following causes of action: (1) Discrimination Based on Race, Ethnicity and/or National Origin; (2) Disability Discrimination (3) Failure to Reasonably Accommodate (4) Failure to Engage in a Prompt, Good Faith Interactive process (5) Retaliation in Violation of FEHA; (6) Failure to Take All Reasonable Steps to Prevent and/or Remedy Discrimination and/or Retaliation; (7) Retaliation and/or Wrongful Termination in Violation of Labor Code § 1102.5; (8) Wrongful Termination in Violation of Public Policy; (9) Defamation; (10) Violation of Labor Code §§